

from suit and legal process as is accorded to an envoy of a sovereign power accredited to the Yang di-Pertuan Agong.

2. Subject to the provisions of Part III of this Constitution, a person ordinarily resident in the State of Sabah or Sarawak or in Brunei on Malaysia Day is a citizen by operation of law if he was immediately before that day a citizen of the United Kingdom and Colonies, and either—

- (a) was born in the territories comprised in the States of Sabah and Sarawak; or
- (b) became such a citizen by registration in those territories or by or in consequence of naturalization there.

PART II

[Article 14(1)(b)]

CITIZENSHIP BY OPERATION OF LAW OF PERSONS BORN ON OR AFTER MALAYSIA DAY

1. Subject to the provisions of Part III of this Constitution, the following persons born on or after Malaysia Day are citizens by operation of law, that is to say:

- (a) every person born within the Federation of whose parents one at least is at the time of the birth either a citizen or permanently resident in the Federation; and
- (b) every person born outside the Federation whose father is at the time of the birth a citizen and either was born in the Federation or is at the time of the birth in the service of the Federation or of a State; and
- (c) every person born outside the Federation whose father is at the time of the birth a citizen and whose birth is, within one year of its occurrence or within such longer period as the Federal Government may in any particular case allow, registered at a consulate of the Federation or, if it occurs in Brunei or in a territory prescribed for this purpose by order of the Yang di-Pertuan Agong, registered with the Federal Government; and
- (d) every person born in Singapore of whose parents one at least is at the time of the birth a citizen and who is not born a citizen otherwise than by virtue of this paragraph; and
- (e) every person born within the Federation who is not born a citizen of any country otherwise than by virtue of this paragraph.

2. (1) A person is not a citizen by virtue of paragraph (a), (d) or (e) of section 1 if, at the time of his birth, his father, not being a citizen, possesses such immunity from suit and legal process as is accorded to an envoy of a sovereign power accredited to the Yang di-Pertuan Agong, or if his father is then an enemy alien and the birth occurs in a place under the occupation of the enemy.

(2) In section 1 the reference in paragraph (b) to a person having been born in the Federation includes his having been born before Malaysia Day in the territories comprised in the States of Sabah and Sarawak.

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NOTES

Second Schedule—(cont.)

Section 2

The words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” and the words “States of Sabah and Sarawak” substituted for the words “Borneo States” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.

3. *See* Part. III, sections 19A-19C.

PART II

1. Added by Act 26/1963, subsection 24(1), in force from 16-09-1963.
2. Act 59/1966, section 2, in force from 09-08-1965, deleted the following references to Singapore and Singapore citizens:
 - (a) Heading—the words “, OTHER THAN SINGAPORE CITIZENS” which appeared at the end thereof;
 - (b) *Sections 1(a) and (e)*—the words “outside Singapore” which appeared after “within the Federation”;
 - (c) *Section 1(a)*—the words “, but not a Singapore citizen,” which appeared after “either a citizen”;
 - (d) *Sections 1(b),(c) and (d)*—the words “, but not a Singapore citizen,” which appeared after “of the birth a citizen”;
 - (e) *Section 2(2)*—the words “or Singapore” which appeared at the end.

Section 2

The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.

3. *See* Part III, section 19A-19C.

Section 1

- a. *Paragraphs (a) & (d): See* subsection 2(1).
- b. *Paragraph (b): See* subsection 2(2).
- c. *Paragraph (c): See* subsection 2(3).
- d. *Paragraph (e): See* subsections 2(1) & (3).

(3) For the purposes of paragraph (e) of section 1 a person is to be treated as having at birth any citizenship which he acquires within one year afterwards by virtue of any provision corresponding to paragraph (c) of that section or otherwise.

PART III

[Article 31]

SUPPLEMENTARY PROVISIONS RELATING TO CITIZENSHIP

The Minister

1. The functions of the Federal Government under Part III of this Constitution shall be exercised by such Minister of that Government as the Yang di-Pertuan Agong may from time to time direct, and references in this Schedule to the Minister shall be construed accordingly.

2. A decision of the Federal Government under Part III of this Constitution shall not be subject to appeal or review in any court.

3. (*Repealed*).

4. (1) The Minister may delegate to any officer of the Federal Government or, with the consent of the Ruler or Yang di-Pertua Negeri of any State, to any officer of the Government of that State, any of his functions under Part III of this Constitution or this Schedule relating to citizenship by registration and the keeping of registers, and, in relation to orders under paragraph (c) of Clause (1) of Article 25 or under Article 26, any of his functions under Article 27 prior to determining whether to make such an order; but any person aggrieved by the decision of a person to whom the functions of the Minister are so delegated may appeal to the Minister.

(2) The Minister may also, with the consent of the Yang di-Pertua Negeri of the State, delegate to an authority of the State of Sabah or Sarawak (subject or not to conditions providing for an appeal from that authority to the Minister) any of the Minister's functions under Clause (6) of Article 28A which are not required to be delegated by Clause (7) of that Article.

(3) Subsection (1) shall apply to enrolments under Clause (2) of Article 19A* as it applies to citizenship by registration, and to the cancellation under Clause (4) of Article 19A* of an enrolment under that Article as it applies to an order under Article 26.

5. (*Repealed*).

Functions of Minister

6. Subject to federal law, the Minister may make rules and prescribe forms for the purpose of the exercise of his functions under Part III of this Constitution.

*NOTE—This Article has been repealed by section 2 of the Constitution (Amendment) Act 1966 [Act 59/1966] w.e.f. 9 August 1965. See notes on Article 19A.

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NOTES

Second Schedule—(cont.)

PART III

1. Numbered as such by Act 26/1963, paragraph 24(1)(a), in force from 16-09-1963, which also inserted the words “of this Constitution” after the words “Part III” wherever occurring in the Part. The sections affected are 1, 2, 4, 6, 10(1)(d), 16(1)(a), 19, 20(1), (2), (3) and 21.
2. *See* Art. 159(4)(a).

Section 2: See notes on previous page.

The heading “The registration authority” which appeared above section 3 was deleted by Act 10/1960, paragraph 33(a), in force from 01-12-1960.

Section 3

This section was repealed by Act 10/1960, paragraph 33(b), in force from 01-12-1960 and read as follows:

“3. For the purposes of Part III and this Schedule the Election Commission shall be the registration authority.”.

Section 4

1. The present section was substituted by Act 10/1960, paragraph 33(c), in force from 01-12-1960. It has been amended as follows:
 - (a) by Act 14/1962, subsection 27(1), in force from 01-10-1962, which substituted the words “or this Schedule relating to citizenship by registration and the keeping of registers, and, in relations to orders under paragraph (c) of Clause (1) of Article 25 or under Article 26, any of his functions under Article 27 prior to determining whether to make such an order” for the words “of this Schedule”;
 - (b) by Act 26/1963, subsection 33(3), in force from 16-09-1963, which renumbered the section as “4. (1)” and added subsections (2) and (3);
 - (c) by Act 59/1966, section 2, in force from 09-08-1965, which deleted the words “or of Singapore” which appeared in subsection (2) after the words “Borneo State”;
 - (d) *subsection (1)*: The words “Yang di-Pertuan Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976;
 - (e) *subsection (2)*: The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976 and the words “the State of Sabah or Sarawak” substituted for the words “a Borneo State” by Act A514, paragraph 19(1)(b), in force from 27-08-1976.
2. The original section 4 read as follows:

“4. The registration authority may delegate to any officers, or, with the consent of the Yang di-Pertuan Agong or of the Ruler or Governor of any State, to any officer of the Federal Government or of the Government of that State, any of its functions under Part III or this Schedule; but any person aggrieved by the decision of a person to whom functions of the authority are so delegated may appeal to the authority.”.
3. The following delegations have been made:
 - (a) *under subsection (1)*:

L.N.(N.S) 114/1957, 10-12/1958, 22-27/1958, 29/1958, 37-38/1958, 47-51/1958, 56/1958, 135-140/1958, 233-235/1958, 255-256/1958, 72/1959;
 - (b) *under subsection (2)*: L.N. 39/1964.

Subsection 4(3): Art. 19A referred to in this subsection has been repealed.

Section 5

This section which read as follows was repealed by Act 10/1960, paragraph 33(d), in force from 01-12-1960:

“5. Any person aggrieved by a decision of the registration authority may appeal to the Supreme Court on a point of law, but except as aforesaid a decision of the registration authority under Part III shall not be subject to appeal or review in any court.”.

3. The words “and registration authority” which appeared in the heading above section 6 were deleted by Act 10/1960, paragraph 33(e), in force from 01-12-1960.

7. Any power of the Federal Government to extend, for purposes of Part III of this Constitution, the period for registering a birth occurring outside the Federation may be exercised either before or after the registration has been effected.

8. (*Repealed*).

9. Any notice to be given by the Minister to any person under Article 27 may be sent to that person at his last known address, or, in the case of a person under the age of twenty-one years (not being a married woman), to his parent or guardian at the last known address of the parent or guardian; and if an address at which notice may be sent to any person under this section is not known and cannot after reasonable inquiry be ascertained, the notice may be given by publication in the *Gazette*.

10. (1) It shall be the duty of the Minister to compile and maintain—

- (a) a register of citizens by registration;
- (b) a register of citizens by naturalization;
- (c) a register of persons to whom certificates have been issued under Clause (1) of Article 30;
- (d) a register of persons who have renounced or been deprived of citizenship under any provision of Part III of this Constitution;
- (e) (*Repealed*);
- (f) an alphabetical index of all persons referred to in paragraphs (a) to (d).

(2) References in this section to citizens by registration or by naturalization shall be construed in accordance with Article 28 as if this section were included among the provisions to which that Article applies.

11. If the Minister has reason to believe that an error appears in any register compiled under section 10, he shall, after giving notice to the person concerned and after considering such representations from him as he may choose to make, make such alteration on the register as appears to the Minister to be necessary to correct the error.

12. Subject to section 11, the said register shall be conclusive evidence of the matters therein contained.

13-15. (*Repealed*).

Offences

16. (1) It shall be an offence punishable with imprisonment for two years or a fine of one thousand ringgit or both for any person—

- (a) knowingly to make any false statement with a view to inducing the Minister to grant or refuse any application under Part III of this Constitution, including any application to determine whether the applicant is a citizen by operation of law; or

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NOTES

Second Schedule—(cont.)

Section 6

1. The present section was inserted by Act 10/1960, paragraph 33(f), in force from 01-12-1960.
2. Act 26/1963, subsection 33(3), in force from 16-09-1963, deleted the words “and this Schedule” which appeared at the end. The original section read as follows:
“6. Subject to federal law, the Minister and the registration authority may make rules and prescribe forms for the purpose of the exercise of their respective functions under Part III and this Schedule.”.
3. *See* paragraph 16(1)(c).
4. *See* Citizenship Rules 1964, in L.N. 82/1964 as amended by L.N. 346/1964, 44/1965, 369/1966, 426/1966.

Section 7

The present section was added by Act 26/1963, subsection 33(3), in force from 16-09-1963, and replaced the earlier section which read as follows:

“7. The power of the Federal Government under paragraph (d) of Clause (1) of Article 14 to allow a longer period for the registration of a birth may be exercised either before or after the registration has been effected.”.

Section 8

This section which read as follows was repealed by Act 10/1960, paragraph 33(g), in force from 01-12-1960:

“8. Where a certificate of naturalization is granted under Article 19 or Article 20, the Minister shall transmit a copy of the certificate to the registration authority.”.

Section 9: See section 18.

Section 10

1. The present section was substituted by Act 10/1960, paragraph 33(h), in force from 01-12-1960. It has been amended as follows:
 - (a) by Act 26/1963, subsection 33(3), in force from 16-09-1963 which—
 - (i) inserted the words “Clause (1) of” before the words “Article 30” in paragraph (1)(c);
 - (ii) substituted paragraph (1)(e) and (f) in substitution for paragraph (e) which read as follows:
“(e) an alphabetical index of all persons referred to in paragraphs (a), (b), (c) and (d) of this subsection.”;
 - (iii) substituted subsection (2) for the earlier subsection which read as follows:
“(2) For the purposes of this section—
“citizen by registration” includes a citizen to whom any paragraph (other than paragraph (c)) of Clause (1) of Article 28 applies and a citizen by registration under Article 170;
“citizen by naturalization” includes a citizen to whom paragraph (c) of Clause (1) of Article 28 applies.”.
 - (b) by Act 59/1966, section 2, in force from 09-08-1965, which—
 - (i) repealed and substituted the words “paragraphs (a) to (d)” for the words “paragraphs (a) to (e)” in paragraph (1)(f). Paragraph (1)(e) read as follows:
“(e) a register of persons enrolled under Article 19A as citizens who are not Singapore citizens.”;
 - (ii) substituted, in subsection (2), the words “Article 28” for the words “Articles 28 and 28A” and the words “that Article applies” for the words “those Articles apply”;
 - (iii) repealed, in the subsection (2), the words “, except that ‘citizen by registration’ does not include any Singapore citizen”.
2. *See* section 11.

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NOTES

Second Schedule, Part III—(cont.)

Subsections (1)(e) & (2): See notes on previous page.

Section 11

1. The word “Minister” substituted for the words “registration authority” and “authority”, and the word “he” which appears after the words “section 10” substituted for the word “it” by Act 14/1962, section 32, in force from 01-12-1960.
2. *See* section 12.

Sections 13, 14 & 15

These sections were deleted by Act 10/1960, paragraph 33(i), in force from 01-12-1960 and read as follows:

“13. For the purpose of determining any question of fact proof of which is needed for a claim by any person to be a citizen by operation of law, or for registration as a citizen, the registration authority shall be entitled to put such questions to that person, or any other person, as it may consider necessary; and unless the authority has reason to doubt the correctness of the answer to any such question, the answer shall be accepted as correct.

14. Without prejudice to section 13, where any person states that he has attained a specified age, that statement shall, unless the registration authority or the Minister, as the case may be, has reason to doubt its correctness, be accepted as correct notwithstanding that that person cannot specify the date of his birth; and any person who claims to be of legitimate birth shall be treated as of such birth unless the registration authority or the Minister, as the case may be, has reason to suppose that he is of illegitimate birth.

15. Where the registration authority is satisfied of all matters required by Article 17 for the purposes of an application for registration under that Article, they shall give notice to that effect to the Minister; and unless within such period as may be prescribed by rules made by the Minister for the purposes of this section the Minister otherwise directs, the authority shall register the applicant accordingly.”.

Section 16

The original section was substituted by Act 10/1960, paragraph 33(j), in force from 01-12-1960 and read as follows:

“16. It shall be an offence punishable with imprisonment for two years or a fine of one thousand dollars or both for any person knowingly to make any false statement with a view to inducing the registration authority or the Minister to grant or refuse any application under Part III including any application to determine whether the applicant is a citizen by operation of law.”.

Subsection 16(1)

The word “ringgit” substituted for the word “dollars” by Act 160, section 2, in force from 29-08-1975.

Subsection 16(2)

1. The present subsection (2) was substituted by Act 26/1963, subsection 33(3), in force from 16-09-1963. The earlier subsection (2) read as follows:

“(2) In this section “certificate” means—

- (a) any certificate of registration as a citizen granted under Article 15, 16, 17 or 170;
- (b) any certificate of registration of a birth at a Malayan Consulate under paragraph (d) of Clause (1) of Article 14;
- (c) any certificate of naturalization granted under Article 19 or 20;
- (d) any certificate of citizenship issued under Article 30.”.

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NOTES

Second Schedule, Part III—(cont.)

2. The words “or under the Constitution of the State of Singapore or any previous law relating to citizenship of Singapore” which appeared after the words “this Constitution” were deleted by Act 59/1966, section 2, in force from 09-08-1965.

- (b) to forge or without lawful authority alter any certificate, whether issued or granted in the Federation or elsewhere, or without lawful authority use or have in his possession any certificate which has been so forged or altered; or
- (c) to fail to comply with any requirement imposed upon him by any rules made under section 6 with respect to the delivering up of certificates; or
- (d) to personate or falsely represent himself to be or not to be a person to whom a certificate, whether issued in the Federation or elsewhere, has been duly issued or granted.

(2) In this section “certificate” means any certificate of the following descriptions issued under Part III of this Constitution that is to say:

- (a) any certificate of a registration or of naturalization as a citizen; and
- (b) any certificate of registration effected at a consulate of the Federation or elsewhere outside the Federation; and
- (c) any such certificate as is mentioned in Article 30.

Interpretation

17. For the purposes of Part III of this Constitution references to a person’s father or to his parent, or to one of his parents, are in relation to a person who is illegitimate to be construed as references to his mother, and accordingly section 19 of this Schedule shall not apply to such a person.

18. In relation to an adopted child whose adoption has been registered under any written law in force in the Federation, including any such law in force before Merdeka Day, Clause (3) of Article 15 shall have effect as if for the reference to his father there were substituted a reference to the adopter, and references in that Clause and section 9 of this Part of this Schedule to his parent shall be construed accordingly.

19. Any reference in Part III of this Constitution to the status or description of the father of a person at the time of that person’s birth shall, in relation to a person born after the death of his father, be construed as a reference to the status or description of the father at the time of the father’s death; and where that death occurred before and the birth occurs on or after Merdeka Day, the status or description which would have been applicable to the father had he died after Merdeka Day shall be deemed to be the status or description applicable to him at the time of his death. This section shall have effect in relation to Malaysia Day as it has effect in relation to Merdeka Day.

19A. For the purposes of Part I or II of this Schedule a person born on board a registered ship or aircraft shall be deemed to have been born in the place in which the ship or aircraft was registered, and a person born on board an unregistered ship or aircraft of the Government of any country shall be deemed to have been born in that country.

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NOTES

Second Schedule—(cont.)

Section 17

This section which was substituted by Act 26/1963, subsection 33(3), in force from 16-09-1963, replaced an earlier section which read as follows:

“17. In relation to a person who is illegitimate, Articles 14 and 15 shall have effect as if for references to his father, and Clause (2)(c) of Article 14 as if for references to either of his parents, there were substituted references to his mother and as if section 19 of this Schedule were omitted; and references in Article 15 and this Schedule to his parent shall be construed accordingly.”.

Section 18

The words “Clause (3) of” were inserted by Act 26/1963, subsection 33(3), in force from 16-09-1963, which also substituted the words “that Clause and section 9 of this Part of this Schedule” for the words “that Article and this Schedule”.

Section 19

1. The last sentence was added by Act 26/1963, subsection 33(3), in force from 16-09-1963.
2. *See* section 17.

Sections 19A, 19B & 19C

Added by Act 26/1963, subsection 24(2), in force from 16-09-1963.